

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sally Lynn Edmonds	Team: Squad #07	CCRB Case #: 201701853	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 03/05/2017 6:35 PM	Location of Incident: 33rd Street between 30th Avenue and Astoria Boulevard	18 Mo. SOL 9/5/2018	Precinct: 114
Date/Time CV Reported Sun, 03/05/2017 8:53 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/09/2017 11:42 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Beihl	13065	950062	114 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Marlenis Cespedes	06045	960353	114 PCT
2. POM Anthony Fontana	11116	960549	114 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christophe Beihl	Discourtesy: Police Officer Christophe Beihl spoke discourteously to § 87(2)(b)	A . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with the Internal Affairs Bureau (IAB) on March 5, 2017. The CCRB received this complaint on March 9, 2017 (Board Review 01; 02).

On March 5, 2017, at approximately 6:35 p.m., § 87(2)(b) was driving northbound on 33rd Street, near the intersection with 30th Avenue, in Queens, when PO Christopher Beihl, PO Anthony Fontana and PO Marlenis Cespedes, all of the 114th Precinct, stopped his vehicle. PO Beihl used the police vehicle's PA system to order § 87(2)(b) to pull over to his right side, but § 87(2)(b) pulled over to the left side of the street. PO Beihl allegedly said, "You didn't finish high school, you don't know the difference between your right and your left." PO Beihl also allegedly responded, "I don't give a shit" when § 87(2)(b) stated that his uncle was an officer (**Allegation A**). PO Beihl issued § 87(2)(b) a summons for operating a portable electronic device while driving.

After receiving the summons, § 87(2)(b) drove to the 114th Precinct stationhouse to make a complaint about PO Beihl. He parked in a no standing zone on Astoria Boulevard South between 33rd Street and 34th Street. PO Beihl noticed § 87(2)(b)'s vehicle and issued him a second summons for parking in a no-standing zone.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) accepted mediation. However, PO Beihl rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On July 11, 2017, the New York City Comptroller's Office notified the CCRB that § 87(2)(b) had not filed a Notice of Claim (Board Review 04).

Civilian and Officer CCRB Histories

- § 87(2)(b) previously filed complaint § 87(2)(b)
- PO Beihl has been a member of service for six years. He has been the subject of six allegations, stemming from three complaints. In case 201308143, allegations of physical force and discourtesy were substantiated. The CCRB recommended command discipline and the NYPD instituted instruction.

Findings and Recommendations

Allegations not Pleaded

- § 87(2)(g)
- § 87(2)(g)

§ 87(2)(g)

Allegation A – Discourtesy: Police Officer Christopher Beihl spoke discourteously to § 87(2)(b)

On March 5, 2017, § 87(2)(b) made a complaint regarding this incident at the 114th Precinct stationhouse (Board Review 12). The same day, he filed this complaint with IAB (Board Review 01; 02). § 87(2)(b) provided a phone statement to the CCRB on March 13, 2017, and a sworn statement on April 10, 2017 (Board Review 06; 07; 08). When § 87(2)(b) filed his complaint with IAB, he did not allege any discourteous statements. While § 87(2)(b) did claim that PO Beihl used profanity in his statements to both the CCRB and the 114th Precinct, § 87(2)(g) § 87(2)(b) alleged two additional discourteous statements in his phone statement that he did not allege in his sworn statement: “Shut up and give me your license,” and “I want to see your fucking license and registration.”

In his sworn statement, § 87(2)(b) alleged that because he pulled over to the left, instead of the right, as instructed, PO Beihl shouted at him, “You didn’t finish high school; you don’t know the difference between your right and your left.” When § 87(2)(b) told PO Beihl that his uncle was an officer, PO Beihl responded, “I don’t give a shit.” A female officer was standing by the passenger side rear door during the interaction. § 87(2)(b) did not see a third officer.

PO Beihl was interviewed at the CCRB on July 12, 2017 (Board Review 09). PO Beihl stated that he had ordered § 87(2)(b) to pull over to the right side of the road multiple times over the RMP’s PA system. When § 87(2)(b) pulled over to the left, it put the officers at a tactical disadvantage. When PO Beihl approached § 87(2)(b) he asked, “Do you know the difference between your right and your left?” He asked the question once, and he did not do so in a sarcastic manner. He did not accuse § 87(2)(b) of not finishing high school or otherwise being uneducated, use profanity, or make any of the alleged discourteous statements. § 87(2)(b) did say that his uncle was an officer, to which PO Beihl responded, “That’s nice.” § 87(2)(b) § 87(2)(b)’s demeanor was agitated from the beginning of the interaction and he was cursing. PO Beihl remained calm throughout the interaction.

PO Cespedes was interviewed at the CCRB on July 20, 2017 (Board Review 10). PO Cespedes believed § 87(2)(b) was stopped using lights and sirens, not the PA system, and she did not recall any conversation regarding whether § 87(2)(b) pulled over to the left or the right. During the car stop, PO Cespedes was standing by the passenger side, between the front and rear doors. She could not hear much of what PO Beihl was saying because the passenger-side front window was rolled up. § 87(2)(b) was shouting that he paid PO Beihl’s salary with his taxes. She did not hear PO Beihl make the alleged discourteous statements or raise his voice.

PO Fontana was interviewed at the CCRB on July 20, 2017 (Board Review 11). PO Fontana recalled PO Beihl going over the PA system multiple times and ordering § 87(2)(b) to pull over to his right, though § 87(2)(b) pulled over to his left. During the car stop, PO Fontana was standing on the driver side near the rear bumper. PO Fontana heard § 87(2)(b) shouting but he could not make out the words that he was saying. PO Beihl went to the RMP to write the summons, and when he came back he asked § 87(2)(b) whether he knew the difference between his right and his left. He asked the question once in a normal tone of voice. PO Beihl did not make the alleged discourteous statements.

§ 87(2)(g)

[REDACTED]

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date